



CHAPTER 30

An Act to provide for the termination of certain emergency powers and to make certain provision in substitution therefor; and for purposes connected with the matters aforesaid. [7th July, 1958]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Termination of certain powers under emergency legislation

- 1.—(1) The following Regulations of the Defence (General) Regulations, 1939, namely—
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| Regulation 50 (power to do work on land) ; | Revocation of certain Defence Regulations and termination of certain other powers. |
| Regulation 51 (taking possession of land) ; | |
| Regulation 51A (power to work minerals) ; | |
| Regulation 52 (use of land for purposes of H.M. forces) ; | |
| Regulation 85 (entry upon, and inspection of, land), | |

if and so far as they remain in force on the thirty-first day of December, nineteen hundred and fifty-eight, shall cease to have effect at the end of that day.

(2) For the purposes of the Requisitioned Land and War Works Act, 1945, the war period (except for any purposes of that Act for which that period has come to an end before the passing of this Act) shall end with the said thirty-first day of December.

(3) The power to make orders under subsection (1) of section two of the Supplies and Services (Defence Purposes) Act, 1951

(which relates to the stopping up of highways for defence purposes) shall not be exercisable after the said thirty-first day of December; and accordingly, in subsection (4) of that section, for the words "on the expiry of the Supplies and Services (Transitional Powers) Act, 1945" there shall be substituted the words "at the end of the year nineteen hundred and fifty-eight", and for the words "expiry of that Act" there shall be substituted the words "end of that year".

Facilities for manœuvres

Orders in
Council
authorising
manœuvres.

2.—(1) Any Order in Council authorising the execution of manœuvres made under section one of the Military Manœuvres Act, 1897 (in this Act referred to as a "manœuvres Order")—

- (a) in specifying the limits within which the execution of the manœuvres is authorised, shall define those limits both by description and by reference to a map, the latter definition prevailing in the case of any discrepancy;
- (b) in specifying the period during which the manœuvres are authorised, shall specify a period beginning not less than nine months after the date on which the Order is made; and
- (c) without prejudice to the power of Her Majesty to authorise any persons to take part in the manœuvres, shall indicate the description of military, naval or air force formations, and the number of such formations of each description, which, at the time when notice of the intention to make the Order was first published, were intended so to take part.

(2) For the purposes of any manœuvres Order, any reference in the said Act of 1897 to authorised lands, authorised roads or authorised sources of water shall be construed as a reference to all lands (including any enclosed wood or plantation and any park), all highways or all sources of water, as the case may be, which are within the limits specified in the Order; and accordingly, in section two of the Military Manœuvres Act, 1911, the proviso to subsection (1) and in subsection (2) the words from "if" onwards (by virtue of which paragraph (1) of the proviso to section two of the said Act of 1897 prohibits entry on or interference with any enclosed wood or plantation or any park unless the wood, plantation or park is included amongst the authorised lands by a manœuvres commission) shall cease to have effect:

Provided that nothing in this subsection shall affect—

- (a) any other restriction imposed by the proviso to section two of the said Act of 1897; or

(b) any restriction imposed under section four of this Act, or, where any such restriction applies to any land or source of water, subject any person to any penalty by virtue of section four of the said Act of 1911 by reason of the erection or display of a notice or mark indicating that restriction.

(3) No recommendation shall be made to Her Majesty in Council to make a manœuvres Order unless—

(a) not less than two months before the date on which the Order is to be made, a draft of the Order has been sent—

(i) to each of the following authorities any part of whose area is comprised within the limits specified in the Order, that is to say, any local authority, any river board, the Conservators of the River Thames, the Lee Conservancy Catchment Board, any parish council in England or Wales, and any district council in Scotland ; and

(ii) if any part of the New Forest is so comprised, to the Verderers of the New Forest ; and

(iii) except where those limits are situated wholly in Scotland, to the National Parks Commission,

and notice of the intention to make the Order has been published in local newspapers which between them circulate in all local authority areas falling wholly or partly within those limits ; and

(b) a draft of the Order has been laid before, and approved by a resolution of, each House of Parliament ;

and accordingly subsections (2) and (3) of section one of the said Act of 1897 and subsection (3) of section one of the said Act of 1911 are hereby repealed.

(4) In this section and section five of this Act, and in the amendments made by the next following section in the said Act of 1897, the expression “ local authority ” means the council of a county, county borough or county district or, in relation to Scotland, a county or town council ; and in subsection (1) of section one of the said Act of 1911 the reference to the council of a county or borough shall be construed as a reference to the council of a county or county borough or, in relation to Scotland, to a county or town council ; and accordingly paragraph (1) of section eight of the said Act of 1897 from the beginning to the word “ exists ” and section five of the said Act of 1911 are hereby repealed.

(5) The said Acts of 1897 and 1911 shall cease to extend to Northern Ireland, and accordingly section nine of the said Act of 1897 is hereby repealed.

(6) The said Acts of 1897 and 1911 shall have effect subject to the amendments specified in the First Schedule to this Act,

being amendments of a minor nature or expedient for the purpose of facilitating the consolidation of the said Acts and this and the three next following sections.

**Manœuvres
commissions.**

3.—(1) In subsection (1) of section four of the Military Manœuvres Act, 1897 (which relates to the formation of a commission, in this Act referred to as a “manœuvres commission”, in connection with any manœuvres Order), for the words from “consisting” to the end of the subsection there shall be substituted the words “consisting (subject to subsection (4) of this section) of—

- (a) a chairman appointed by the Lord Chancellor ;
- (b) four members appointed by the Minister of Agriculture, Fisheries and Food as follows, namely—
 - (i) one from amongst persons appearing to that Minister to have had wide experience of, and shown capacity in, matters relating to agriculture ;
 - (ii) one from amongst persons appearing to that Minister to have had wide experience of, and shown capacity in, matters relating to forestry ;
 - (iii) one on the nomination of such organisation as may appear to that Minister to represent the interests of farmers ; and
 - (iv) one on the nomination of such organisation as may appear to that Minister to represent the interests of owners of agricultural land ;
- (c) four members appointed by the Minister of Housing and Local Government, of whom—
 - (i) three shall be appointed after consultation with such organisations of local authorities as that Minister considers appropriate and shall include at least one person appearing to that Minister to be specially qualified to watch over the amenities of the area in which the manœuvres are to be held ; and
 - (ii) one shall be appointed on the nomination of the National Parks Commission ; and
- (d) three members appointed by the Secretary of State for War.”

(2) The following subsections shall be added at the end of the said section four :—

“ (4) Where an Order in Council under this Act authorises the execution of manœuvres in an area the whole of which is in Scotland, the provisions of subsection (1) of this section shall apply with the following modifications, that is to say—

- (a) in paragraphs (a) and (b) of that subsection, for any reference to any Minister therein mentioned there shall be substituted a reference to the Secretary of State for Scotland ; and

(b) for paragraph (c) of that subsection there shall be substituted the following paragraph:—

“(c) three members appointed by the Secretary of State for Scotland after consultation with such organisations of local authorities as he considers appropriate and including at least one person appearing to that Secretary of State to be specially qualified to watch over the amenities of the area in which the manœuvres are to be held.”

(5) Where an Order in Council under this Act authorises the execution of manœuvres in an area of which part but not the whole is in Scotland, two separate commissions shall be formed, of which—

(a) one shall be formed in accordance with subsection (1) of this section for so much of the area as is not in Scotland; and

(b) the other shall be formed in accordance with that subsection modified in the manner provided by paragraphs (a) and (b) of the last foregoing subsection for so much of the area as is in Scotland;

and where two commissions are formed in accordance with this subsection, the functions of a commission formed in accordance with the said subsection (1) shall be exercisable by each of them in relation to their respective parts of the area:

Provided that each commission shall consult the other in matters appearing to them to be of common concern to them both.”

(3) The Secretary of State may make to all or any of the chairman and the other members of any manœuvres commission such payments by way of remuneration or allowances as the Treasury may approve, and any expenses incurred by a manœuvres commission in the exercise of their functions shall be paid by the Secretary of State.

4.—(1) Subject to the next following section, a manœuvres commission formed in connection with a manœuvres Order may issue such directions as the commission may consider necessary or expedient for the purpose of avoiding damage or disturbance in consequence of the execution of the manœuvres authorised by the Order beyond what is necessary for the effective carrying out of those manœuvres.

**Powers of
manœuvres
commission
to give
directions.**

(2) Any such directions shall be so framed as to impose requirements either on the persons taking part in the manœuvres or on, or on any class of, occupiers of land, being land comprised within the limits specified in the Order or land in the vicinity of land so comprised.

(3) Requirements imposed by the directions on persons taking part in the manœuvres may, where the commission consider it necessary or expedient for avoiding damage or disturbance, include provisions precluding those persons from entering upon land specified in the directions or from using a source of water so specified, or restricting entry upon such land or the use of such land or such a source of water by those persons, notwithstanding that the land or source of water is within the limits specified in the Order; and it shall be the duty of the officer directing the manœuvres to issue such instructions to the persons taking part in them as, in the opinion of that officer, will secure compliance with any such requirements.

(4) If, where a requirement has been imposed by any such directions on the occupier of any land, that occupier without reasonable cause refuses or fails to comply with that requirement and in consequence thereof any livestock of his is injured, or any other property of his is damaged, he shall not be entitled to compensation under section six of the Military Manœuvres Act, 1897, in respect of that injury or damage; and in subsection (4) of that section (which relates to the determination of questions with respect to the amount of compensation) for the words "the amount of" there shall be substituted the words "any claim for".

(5) Where, by virtue of subsection (2) of the last foregoing section, two commissions have been formed in connection with any manœuvres Order, the power to issue directions conferred by this section may be exercised by those commissions either separately in relation to their respective parts of the area in which the manœuvres are authorised to be executed or jointly in relation to the whole of that area.

(6) Section five of the said Act of 1897 (which empowers a manœuvres commission to make orders and regulations) is hereby repealed.

Supplementary provisions as to commission's directions.

5.—(1) Where a manœuvres commission formed in connection with a manœuvres Order propose to issue any directions under the last foregoing section, the commission shall consult the Secretary of State for War and such other authorities or organisations as they consider appropriate, and shall send to every local authority any part of whose area is comprised within the limits specified in the Order the following documents, that is to say—

(a) a draft of the directions; and

(b) a copy of the Order,

together with a notice specifying the time (not being less than twenty-one days) within which, and the manner in which, representations may be made to the commission with respect to the draft directions.

(2) A local authority, upon receiving the documents and notice aforesaid, shall make the documents available for a period of not less than two weeks for inspection by the public during reasonable hours at the offices of the authority or at such other place, being a place within their area, as they may consider appropriate, and shall cause to be published in each week of that period in one or more local newspapers circulating in their area notice of the receipt of those documents stating—

- (a) the place at which and the hours during which the documents may be inspected ; and
- (b) in accordance with the notice sent to the local authority, the time within which, and the manner in which, representations may be made to the commission with respect to the draft directions.

(3) Where any such representations are duly made, the commission shall, after giving not less than fourteen days' notice by advertisement in such local newspapers as appear to them to be appropriate, hold a public inquiry (or, if they think fit, two or more public inquiries) into those representations, and shall make such alterations, if any, in the draft directions as they may think fit having regard to those representations and to the results of any such inquiry.

(4) Not later than four months before the commencement of the manœuvres, the commission shall transmit the draft directions with any alterations made under the last foregoing subsection to the Secretary of State for War.

(5) Where any draft directions transmitted to the Secretary of State under this section include any such provisions as are mentioned in subsection (3) of the last foregoing section, and the Secretary of State is satisfied that any of those provisions would be likely to have the effect of frustrating all or some of the purposes of the manœuvres Order, the Secretary of State may not later than three months before the commencement of the manœuvres by notice in writing to the commission (a copy of which he shall cause to be laid before each House of Parliament) require the draft directions to be varied by deleting those provisions or by modifying them in such manner as may be specified in the notice :

Provided that any variation required by the Secretary of State by virtue of this subsection shall be the minimum which in his opinion is necessary to prevent any of the purposes of the Order from being frustrated.

(6) Where the Secretary of State determines that no variation of the draft directions is required, he shall as soon as may be give notice to the commission of that determination.

(7) As soon as may be after receipt of a notice under either of the two last foregoing subsections or, if by the date falling

three months before the commencement of the manœuvres no such notice has been received, as soon as may be after that date, the commission shall issue the directions in the form of the draft transmitted to the Secretary of State with any variations required by the Secretary of State under subsection (5) of this section; and where any directions are issued with any such variation the directions shall indicate the nature and extent of the variation.

(8) On the issue of the directions the commission shall publish them in such manner as they may consider most suitable for giving notice of the directions to all persons likely to be affected by them.

(9) Where, in a case to which subsection (5) of the last foregoing section applies, directions fall to be issued separately for different parts of the area authorised for the execution of the manœuvres, the reference in subsection (1) of this section to the limits specified in the manœuvres Order shall be construed as a reference to the part of the area comprised within those limits in relation to which the functions of the commission in question fall to be exercised.

(10) In this section any reference to the commencement of the manœuvres is a reference to the beginning of the period specified in the manœuvres Order relating thereto as the period during which the manœuvres are authorised by the Order.

Occasional use of land for defence training purposes

Power to
require use
of land for
limited
training
purposes.

6.—(1) Subject to the provisions of Part I of the Second Schedule to this Act, a Secretary of State or the Admiralty may by order direct that any land specified in the order shall, during such period of twelve months as may be so specified, be subject to occasional use under the authority of the Minister making the order for any one or more of the following purposes so specified, that is to say—

- (a) the encampment of persons in transit to or from a training area;
- (b) the carrying out of signalling exercises;
- (c) in the case of land consisting of or including cliffs on the seashore, the carrying out of cliff assault exercises;
- (d) the affording of access to and from other land which by virtue of that or another order under this section is subject to occasional use for one or more of the foregoing purposes:

Provided that an order under this section shall not be made for the occasional use of the whole or any part of the same land during the whole or any part of the same period as is specified in any other such order.

(2) Subject to the two next following subsections, where an order is in force under this section in respect of any land, any

persons authorised for the purpose by the Minister by whom the order was made may—

- (a) at any time within the period specified in the order, enter upon that land, with or without equipment, for the purposes specified in the order in relation to that land, and make use of the land, and carry out any work on, over or below the surface of the land, for those purposes ;
- (b) at any time before or during the period specified in the order, display notices on that land with respect to the exercises or operations to be carried out thereon and make other preparations on that land for those exercises or operations, and for that purpose enter upon the land, with or without equipment.

(3) The powers conferred by the last foregoing subsection shall not be exercisable unless, not less than fourteen days before the time at which entry is to be made on any land in pursuance thereof, the Minister by whom the order in question was made has given notice of the intended entry to any occupier of that land or any part thereof, specifying in the notice the period, not exceeding a continuous period of seventy-two hours, during which those powers are to be exercisable by virtue of the notice ; and notice for the purposes of paragraph (a) of that subsection shall not be given—

- (a) more than six times during the period specified in the order ; or
- (b) so as to expire less than twenty-one days after the expiration of the period specified in a previous notice given for the purposes of that paragraph ;

and the powers conferred by the last foregoing subsection shall not be exercisable in respect of any period during which the use for the time being for defence training purposes of the land in question is the subject of a manœuvres Order.

(4) Nothing in subsection (2) of this section shall authorise any person—

- (a) to enter upon any land or premises which would be exempted from entry by virtue of paragraph (1) of the proviso to section two of the Military Manœuvres Act, 1897, if the order under this section were a manœuvres Order ; or
- (b) to injure or deface any monument which is included in a list published under section twelve of the Ancient Monuments Consolidation and Amendment Act, 1913, or which is shown by a notice fixed thereon to be comprised in a preservation order or interim preservation notice under Part II of the Historic Buildings and Ancient Monuments Act, 1953 ;

but the powers conferred by the said subsection (2) shall be exercisable notwithstanding any other restriction affecting the use of the land in question.

(5) The provisions of subsections (1), (3) and (4) of section six and section seven of the Military Manœuvres Act, 1897 (which relate to compensation and penalties for obstruction) shall apply for the purposes of this section as if any reference in those provisions—

- (a) to a manœuvres Order were a reference to an order under this section ;
 - (b) to the said Act of 1897 were a reference to this section ;
 - (c) to authorised forces were a reference to persons authorised under subsection (2) of this section ;
 - (d) to the execution, or to the purposes, of the manœuvres were a reference to the exercise, or, as the case may be, to the purposes, of any rights conferred by virtue of this section ;
 - (e) to the commission or to the compensation officer were a reference to the Minister by whom the order under this section in question was made.
- (6) For the purposes of this section—
- “encampment” includes operations incidental to encampment (including the taking of water for use by persons or animals or in mechanically-propelled vehicles) and the carrying out of training exercises in the defence of the camp and operations incidental to such exercises ;
 - “equipment” (without prejudice to the generality of that expression) includes weapons, vehicles, aircraft and animals ;
 - “training area” means any area for the time being available for use for the training of Her Majesty’s forces ;
 - “signalling exercises” includes operations incidental to such exercises, including the erection of poles and the laying of wires and cables on or over land.

Use of sea areas for defence purposes

**Power to
make byelaws
over sea areas.**

7. Where in the case of any area of sea, tidal water or shore used or to be used for defence purposes by one of the following Ministers, that is to say, a Secretary of State, the Admiralty or the Minister of Supply, being an area lying wholly or partly within the limits of the territorial waters of the United Kingdom, it appears to that Minister to be necessary or expedient to make provision for regulating the use of that area for those purposes or for securing the public against danger arising from that use, the powers conferred by subsection (2) of section two of the Military Lands Act, 1900 (which enables byelaws to be made in relation to such areas where they abut on, or are subject to

rifle or artillery practice from, land appropriated or used for defence purposes) shall be exercisable in relation to the area in question whether or not it abuts on or is subject to such practice from any such land.

Stopping up and diversion of highways

8.—(1) The powers conferred on the Minister of Transport and Civil Aviation by section forty-nine of the Town and Country Planning Act, 1947 (which empowers that Minister to authorise by order the stopping up or diversion of a highway where he is satisfied that it is necessary to do so to enable land to be developed) shall also be exercisable where—

Stopping up
and diversion
of highways.

- (a) land is, or is to be, used by a Secretary of State, the Admiralty or the Minister of Supply for the purposes of an installation provided or to be provided for defence purposes, or is used by a manufacturer of aircraft as an airfield wholly or mainly in connection with the manufacture of aircraft for defence purposes; and
- (b) the Minister of Transport and Civil Aviation is satisfied that, for the land to be so used efficiently without danger to the public, it is necessary that a highway should be stopped up or diverted.

(2) Where, in the circumstances specified in paragraphs (a) and (b) of the foregoing subsection, it appears to the Minister of Transport and Civil Aviation that it is not necessary that the highway should be stopped up or diverted for more than a limited period, an order under the said section forty-nine, including an order made by virtue of subsection (7) of that section (which authorises the stopping up or diversion of a highway temporarily stopped up or diverted under any other enactment) instead of providing for the permanent stopping up or diversion of the highway may provide for its stopping up or diversion during such period as may be prescribed by or under the order and for its restoration at the expiration of that period:

Provided that, for the purposes of any subsequent order by virtue of the said subsection (7), any order made by virtue of the foregoing provisions of this subsection shall be regarded as having been made otherwise than under the said section forty-nine.

(3) Any order made by virtue of the last foregoing subsection which provides for the provision of another highway in substitution for a highway stopped up by the order may also contain such provisions as appear to the Minister of Transport and Civil Aviation to be expedient for the stopping up, at the expiration of the period prescribed by or under the order, of that other highway and for the original highway to be reconstructed at the expense of such of the Ministers referred to in paragraph (a) of subsection (1) of this section as may be specified in the order and thereafter maintained by any person who would

for the time being have been liable for its maintenance if it had never been stopped up.

(4) For the purposes of the making of any order under the said section forty-nine—

- (a) by virtue of subsection (1) or (2) of this section ; or
- (b) by virtue of subsection (7) of the said section forty-nine for the permanent stopping up or diversion of a highway temporarily stopped up or diverted by virtue of the said subsection (2),

the Sixth Schedule to the said Act of 1947 (which relates to the procedure to be followed in connection with the making of orders under that section) shall have effect as if—

- (i) in sub-paragraph (b) of paragraph 1 of that Schedule (which requires a copy of the draft order and of any relevant map or plan to be available for inspection during a period of three months) ; and
- (ii) in paragraph 4 of that Schedule (which relates to procedure where an objection is received before the end of that period),

for the words “ three months ” there were substituted the words “ thirty days ”.

(5) In the application of this section to Scotland, for references to the Minister of Transport and Civil Aviation, to the Town and Country Planning Act, 1947, and to section forty-nine of that Act there shall be substituted respectively references to the Secretary of State, to the Town and Country Planning (Scotland) Act, 1947, and to section forty-six of that Act.

(6) In the application of this Act to Northern Ireland, the provisions of the Third Schedule to this Act shall have effect in lieu of the foregoing provisions of this section.

Supplementary provisions with respect to stopping up and diversion of highways.

9.—(1) The powers to make orders conferred on the Minister of Transport and Civil Aviation—

- (a) by section fifteen of the Requisitioned Land and War Works Act, 1945, with respect to the permanent stopping up or diversion of a highway which has been stopped up or diverted in the exercise of emergency powers or as respects which a Minister has certified as mentioned in subsection (1) of section three of the Requisitioned Land and War Works Act, 1948 ; and
- (b) by section sixteen of the said Act of 1945 with respect to the use and maintenance until other provision is made by or under any Act of certain works placed along, across, over or under a highway in the exercise of emergency powers or for war purposes,

shall include power to vary or revoke any previous order made under the section in question ; and subsection (1) of section twenty of the said Act of 1945 (which restricts the period during which orders may be made under the said section fifteen or

sixteen) shall not apply to any order so far as it is made by virtue of this subsection.

(2) Where on the thirty-first day of December, nineteen hundred and sixty—

- (a) an order under the said section fifteen provides for the permanent stopping up or diversion of a highway conditionally upon the completion of the diversion or of the provision or improvement of another highway in substitution for the original highway; and
- (b) that condition has not been satisfied; and
- (c) by virtue of the foregoing subsection, proposals for the variation of that order have been published in accordance with the provisions of Part III of the said Act of 1945,

the prevention of the exercise of the right to use that highway may be continued pending the coming into operation of an order made in pursuance of the said proposals or, if those proposals are abandoned, whether by reason of an adverse report of the War Works Commission or otherwise, until six months after the abandonment.

(3) Any person authorised in that behalf by the Minister of Transport and Civil Aviation or a local authority may enter on any land for the purpose of surveying it in connection with, or with proposals for, the diversion, provision or improvement of any highway by virtue of an order under the said section fifteen, and the provisions of the Fourth Schedule to this Act shall have effect in relation to the powers conferred by this subsection.

In this subsection and in the said Fourth Schedule the expression "local authority" means the council of a county, borough or urban district or, in relation to Scotland, a county or town council.

(4) In the following provisions, in their application to Scotland, that is to say—

- (a) this and the last foregoing section;
 - (b) sections fifteen and sixteen of the said Act of 1945;
 - (c) section twenty-eight of the Civil Aviation Act, 1949;
 - (d) section two of the Supplies and Services (Defence Purposes) Act, 1951; and
 - (e) section thirty-two of the Mineral Workings Act, 1951,
- and in section forty-six of the Town and Country Planning (Scotland) Act, 1947 (all of which provisions relate to the stopping up of highways) the expression "highway" shall be deemed to include any public right of way:

Provided that nothing in this subsection shall authorise the imposition upon any person of responsibility for the provision, maintenance or management of any highway over which there is not a right of way for vehicles and for the repair and maintenance of which that person has not previously been under any liability.

(5) In the application of this section to Scotland or to Northern Ireland, for references to the Minister of Transport and Civil Aviation there shall be substituted references to the Secretary of State.

Prevention of interference with certain defence installations

Prevention of
obstruction
of airfields.

10.—(1) Where any land is, or is to be, used by a Minister to whom this section applies as an airfield for defence purposes, and it appears to that Minister that any object of a description specified in the next following subsection which is situated within two miles of any part of the boundary of the airfield is in such a position, or of such a height, as to interfere or be likely to interfere with the safe and efficient use of the airfield for defence purposes, then, subject to the provisions of Part I of the Second Schedule to this Act, that Minister may by order require the occupier of the land on which that object is situated to take within such period (not being less than twenty-one days from the date when notice of the making of the order is served on that occupier) as may be specified in the order such action by way of removing, resiting or reducing the height of that object as may be so specified, or such other action as may be agreed between the Minister and the occupier, to prevent any such interference.

(2) The said descriptions of objects are trees, hedges, fences, poles, masts, cables, wires, walls (other than a wall forming part of a roofed structure) and moveable structures.

(3) If the person to whom an order under this section is directed fails to comply therewith within the period specified therein, the Minister who made the order may take the action specified in the order, and for that purpose any person authorised in that behalf by that Minister may enter upon any land upon which the person to whom the order is directed is entitled or permitted to enter; and paragraphs 1 and 2 of the Fourth Schedule to this Act shall apply for the purpose of the exercise of the powers conferred by this subsection.

(4) Where notice of a Minister's proposal to make an order under this section requiring the removal of a tree is served under paragraph 2 of the Second Schedule to this Act and—

- (a) the tree is situated on land used (otherwise than as woodlands) as agricultural land; and
- (b) the draft order does not require the tree to be removed in such manner as not to leave any stump; and
- (c) any person upon whom the said notice is required by the said paragraph 2 to be served duly makes an objection that, if the tree is to be removed, it should be removed in such manner as aforesaid, and that objection is not withdrawn; and
- (d) the person conducting the inquiry into that proposal under paragraph 4 of the said Second Schedule reports

to the Minister that in his opinion it is desirable in the interests of good husbandry and reasonable in all the circumstances of the case that the objection should be met,

then, if the order as made requires the removal of that tree, it shall require its removal in such manner as aforesaid; and any Minister exercising the powers conferred by the last foregoing subsection for the purpose of causing any tree or hedge to be removed, lopped or cut shall issue instructions with a view to securing that the removal, lopping or cutting will be carried out in a woodmanlike manner, and so as to cause as little damage as possible to other trees or hedges and to fences and growing crops.

(5) Subject to the next following subsection, the person to whom an order under this section is directed shall be entitled to compensation from the Minister who made the order in respect of any expenses reasonably incurred by that person in complying with the order or in selling or otherwise disposing of any materials under the next following subsection; and any person who, in consequence of the taking of any action required by the order, suffers loss by reason of damage to, or is disturbed in the enjoyment of, any land or chattels, or would, but for subsection (7) of this section, have been entitled to a remedy for the breach of a covenant or agreement prohibiting or restricting the taking of that action, shall be entitled to compensation from that Minister in respect of that damage or disturbance or in respect of the loss of that remedy; and if, in consequence of the order or of the taking of any action required thereby, any interest in land which comprises, or is held with, the land on which the object to which the order relates is situated, being an interest subsisting at the time when the order was made, is depreciated in value, there shall be payable by that Minister in respect of that interest compensation of an amount equal to the amount of the depreciation; and any dispute as to a right to compensation under this subsection or as to the amount thereof shall be determined by the Lands Tribunal.

(6) Where any timber or other materials require disposal in consequence of the taking of any action required by an order under this section and—

- (a) that action was taken in compliance with the order by a person who is not entitled to those materials; or
- (b) that action was taken by a Minister under subsection (3) of this section,

that person may, or, in a case falling within paragraph (b) of this subsection, that Minister may, and if so required by the person to whom the order is directed shall, sell or otherwise dispose of any of those materials of which the person entitled

thereto does not take possession within seven days from the completion of the action, and shall pay the proceeds of any such sale or disposal to the person so entitled; and any compensation in respect of the depreciation in the value of any interest in land falling to be paid to any person under the last foregoing subsection shall be reduced by—

- (i) the amount of any sum paid to that person in pursuance of this subsection; and
- (ii) an amount equal to the value of any such timber or other materials as aforesaid to which that person is entitled which are not sold or otherwise disposed of under this subsection.

(7) The taking of any action required by an order under this section shall not subject any person to any liability by reason of any enactment, covenant or agreement prohibiting or restricting the taking of that action.

(8) This section applies to the following Ministers, that is to say, a Secretary of State, the Admiralty and the Minister of Supply.

**Prevention of
interference
with operation
of electrical
apparatus.**

11.—(1) Where any land is, or is to be, used by a Minister to whom the last foregoing section applies for the operation for defence purposes of any electrical apparatus for affording navigational aid to aircraft, or for communicating with, guiding or locating aircraft or missiles, and it appears to that Minister that any object of a description specified in the next following subsection which is situated within two miles of any part of the apparatus is in such a position, or of such a height, or is made of such materials, as to interfere with the efficient operation of the apparatus, then, subject to the provisions of Part I of the Second Schedule to this Act, that Minister may by order require the occupier of the land on which that object is situated to take within such period (not being less than twenty-one days from the date when notice of the making of the order is served on that occupier) as may be specified in the order such action by way of removing, replacing, resiting or reducing the height of that object as may be so specified, or such other action as may be agreed between that Minister and the occupier, to prevent any such interference.

(2) The said descriptions of objects are—

- (a) objects of any of the descriptions specified in subsection (2) of the last foregoing section;
- (b) moveable objects made wholly or mainly of metal;
- (c) parts of buildings or structures, being parts made wholly or mainly of metal, which, without appreciably affecting the subsequent use of the building or structure in question, can be either removed or replaced by parts made of other materials.

(3) Subsections (3) to (7) of the last foregoing section shall have effect for the purposes of this section as if any reference therein to that section were a reference to this section.

Storage and transmission of oil

12.—(1) In the Requisitioned Land and War Works Acts, 1945 and 1948, the expression “government war works” shall include, and be deemed always to have included, any oil pipe-line or works accessory thereto laid, installed or constructed by or under the authority of a Minister—

Extension of provisions of Requisitioned Land and War Works Acts.

(a) in pursuance of Regulation 50 of the Defence (General) Regulations, 1939; or

(b) in pursuance of an agreement in such circumstances that, if the agreement had not been made, the like pipe-line or works could have been laid, installed or constructed in pursuance of the said Regulation 50,

and completed before the end of the year nineteen hundred and fifty-eight; and the expression “government oil pipe-line” in the said Act of 1948 and in any regulations made thereunder shall be construed accordingly.

(2) In subsection (1) of section fourteen of the said Act of 1948 (which provides that, after the thirty-first day of December, nineteen hundred and forty-nine, section twelve of that Act shall not apply to any pipe-line or works accessory thereto unless the rights conferred by subsection (1) of the said section twelve have been registered in the appropriate register of local land charges), for the words “forty-nine” there shall be substituted the word “sixty”.

(3) In relation to any pipe-line or works accessory thereto with respect to which, at the date of the passing of this Act—

(a) rights conferred as aforesaid have not been registered as aforesaid; and

(b) no such evidence of endorsement of documents of title as is required by regulations made under subsection (2) of the said section fourteen has been produced in accordance with those regulations,

the date as from which the rights conferred by section thirteen of the said Act of 1948 (which relates to compensation) are to be substituted for the rights conferred by subsection (2) of section three of the Compensation (Defence) Act, 1939, shall be the date of the passing of this Act or the date of the completion of the pipe-line or works in question, whichever of those dates is the later, and accordingly, in relation to any such pipe-line or works—

(i) subsection (2) of the said section thirteen shall apply as if the said section twelve had come into operation at the later of the dates aforesaid;

- (ii) in subsections (4) and (5) of the said section thirteen the references to the commencement of the said Act of 1948 shall be construed as references to the later of the dates aforesaid ; and
- (iii) in subsection (6) of the said section thirteen, the reference to the exercise of the powers therein mentioned shall be construed as a reference to the exercise of those powers after the later of the dates aforesaid.

(4) Where under any agreement made before the passing of this Act—

- (a) payments (whether referred to as compensation, rent or otherwise) are to be made in respect of a pipe-line or works to which the last foregoing subsection applies ; and
- (b) any such payments become payable in respect of a period after the passing of this Act,

the right to those payments shall be taken to be in substitution for the right to any corresponding payment of compensation in respect of that period under section thirteen of the said Act of 1948.

(5) In the application of this section to Scotland, for any reference to the registration of rights in the appropriate register of local land charges there shall be substituted a reference to the recording in the appropriate register of sasines of a deed granting such rights.

Acquisition of
land for oil
installations.

13. The Minister of Power may acquire by agreement, or, subject to the provisions of Part I of the Second Schedule to this Act, may by order provide that Part II of that Schedule shall have effect for the purpose of the acquisition by him of—

- (a) any land required for the construction of oil installations which in his opinion are essential for the defence of the realm ;
- (b) any land on or under which there are oil installations which, immediately before the passing of this Act, were government war works for the purposes of Part II of the Requisitioned Land and War Works Act, 1945 ;
- (c) any easement over or right restrictive of the user of any other land, being an easement or right which in the opinion of that Minister is essential to the full enjoyment of any land on or under which such an oil installation as is mentioned in either of the two foregoing paragraphs is to be or has been constructed.

Wayleave
orders for oil
pipe-lines and
accessory
works.

14.—(1) Subject to the provisions of Part I of the Second Schedule to this Act, a Minister specified in subsection (3) of this section may, for any purpose specified in relation to him in that

subsection, by order (in this Act referred to as a "wayleave order") and without further assurance vest in himself with respect to any land specified in the order the right—

- (a) in such positions (subject to any minor deviations found to be necessary or expedient) under or above the surface of that land, or partly under and partly above the surface thereof, as may be specified by the order, to carry out all or any of the following operations, that is to say—

(i) the laying of an oil pipe-line ;

(ii) the installation or construction of such minor works accessory to an oil pipe-line, whether laid under that wayleave order or otherwise, as may be so specified,

and from time to time maintain or remove any pipe-line or works so laid, installed or constructed ;

- (b) to use any such pipe-line or works for any purpose appearing to that Minister to be expedient and not to be inconsistent with the purposes for which the order was made.

(2) For the purposes of the foregoing subsection, the expression "minor works accessory to an oil pipe-line" shall include works so accessory of any of the following descriptions, that is to say—

- (a) manholes, inspection pits and similar works ;

(b) electrical apparatus for the operation or maintenance of an oil pipe-line, and electric lines (within the meaning of the Electric Lighting Act, 1882) provided mainly for the purpose of supplying electricity to such apparatus ;

(c) markers for indicating the position of an oil pipe-line or of any such apparatus or electric line as is mentioned in the last foregoing paragraph, in so far as the pipe-line, apparatus or electric line is placed below the surface of the land ;

(d) stiles, bridges, gates or other works for affording access to an oil pipe-line.

(3) The Ministers and purposes referred to in subsection (1) of this section are—

(a) a Secretary of State or the Admiralty, for defence purposes ;

(b) the Minister of Power, for the purpose of the provision and maintenance of facilities which in his opinion are essential for the defence of the realm ;

(c) any of the Ministers aforesaid, for the purpose of any diversion appearing to that Minister to be necessary or expedient of an oil pipe-line which—

(i) is vested in or under the control of that Minister ; and

(ii) either is a government oil pipe-line within the meaning of the Requisitioned Land and War Works Act, 1948, or was laid under a wayleave order made by that Minister.

Supplementary
provisions as
to wayleave
orders.

15.—(1) Any person authorised in that behalf by the Minister by whom a wayleave order was made may, for the purpose of—

- (a) exercising any rights under the order ; or
- (b) restoring land where a pipe-line or works laid, installed or constructed under the order are removed or abandoned ; or
- (c) inspecting any land, pipe-line or works to which the order relates,

enter upon any land of which that Minister is not in possession ; and paragraphs 2 and 3 of the Fourth Schedule to this Act shall apply in relation to the powers conferred by this subsection :

Provided that—

- (i) except in a case of emergency or for the purpose of inspection by a person producing, if required, written evidence of his authority so to do, entry upon any land shall not be demanded as of right unless not less than seven days' notice in writing of the intended entry has been served on the occupier of the land ;
- (ii) where otherwise than for the purpose of inspection only any land has been entered upon in pursuance of this subsection without notice being served as aforesaid on the occupier of the land, that Minister shall forthwith cause notice in writing of the entry to be served on the occupier.

(2) Sections seventy-eight to eighty-five of the Railways Clauses Consolidation Act, 1845, as originally enacted (which restrict the working of minerals, subject to the payment of compensation) shall apply to any pipe-line or works laid, installed or constructed under a wayleave order as if—

- (a) any reference to the railway were a reference to the pipe-line or works in question ;
- (b) any reference to the company were a reference to the Minister by whom the wayleave order was made.

(3) The Treasury may make regulations—

- (a) for the protection of persons affected by the laying, installation, construction, maintenance or use under a wayleave order of pipe-lines or accessory works, and in particular for requiring the Minister by whom the order was made to keep in good repair any pipe-line or works laid, installed or constructed under the order,

to take such steps as may be prescribed by the regulations for restoring land where any such pipe-line or works are removed or abandoned, and to indemnify persons against loss or damage caused by any failure to keep any such pipe-line or works in good repair, and for relieving statutory undertakers and other persons of liabilities or obligations arising in consequence of any such failure or any exercise of the rights conferred by the wayleave order ;

- (b) for requiring notice to be given where a pipe-line or works laid, installed or constructed under a wayleave order are removed or abandoned.

(4) In the application of this section to Scotland, for the reference to sections seventy-eight to eighty-five of the Railways Clauses Consolidation Act, 1845, there shall be substituted a reference to sections seventy-one to seventy-eight of the Railways Clauses Consolidation (Scotland) Act, 1845.

16.—(1) Subject to the next following section, where, in the case of any oil pipe-line or works accessory thereto, rights are for the time being exercisable with respect thereto by a Minister under subsection (1) of section twelve of the Requisitioned Land and War Works Act, 1948, or under a wayleave order, no person shall without the consent of that Minister—

Protection
of oil pipe-
lines and
accessory
works.

- (a) erect or construct any building or structure, or execute any works providing passage or hard standing for vehicles, persons or animals, in such a way that any part of the building, structure or works is situated within an area falling within ten feet of, or of the portion of the surface of the land lying immediately above, any part of the pipe-line or accessory works or the proposed site thereof ; or
- (b) carry out any excavation, or deposit any earth, refuse, spoil or other materials, on any land within such an area as aforesaid :

Provided that nothing in paragraph (b) of this subsection shall require the consent of that Minister to any agricultural operations other than—

- (i) operations for the storage of crops, grass or silage ; and
- (ii) ploughing for purposes of drainage.

(2) If the provisions of the foregoing subsection are contravened, the Minister concerned may remove anything erected, constructed or deposited, and fill in any excavation made, in contravention of those provisions, and carry out all such other work (if any) as may appear to him to be requisite in consequence of the contravention ; and for the purposes of the exercise of the powers conferred by this subsection any person authorised in that behalf by that Minister may enter upon

any land upon which the occupier of the land on which the contravention was committed is entitled or permitted to enter, and paragraphs 1 and 2 of the Fourth Schedule to this Act shall apply.

(3) Any expenses incurred by a Minister under the last foregoing subsection shall be recoverable by him from the occupier of the land on which the contravention was committed:

Provided that where the occupier occupies that land—

(a) as tenant under a lease or as licensee under a licence to occupy that land for use as agricultural land and the contravention was committed by some other person who, at the time of its commission, was an owner or lessee of that land ; or

(b) as tenant under a lease granted to the occupier and—

(i) the grantor has not given the occupier notice that subsection (1) of this section has taken effect as respects the land ; and

(ii) the occupier has not been served in connection with the land with any document such as is mentioned in sub-paragraph (i) or (ii) of paragraph (b) of subsection (2), (5) or (6) of the next following section,

the expenses aforesaid shall not be recoverable from the occupier, but, except where that other person or, as the case may be, the grantor is a person in relation to whom, by virtue of the said subsection (2), (5) or (6), the said subsection (1) has not taken effect, shall be recoverable from that other person or, as the case may be, from the grantor.

In this subsection the expression “lease” includes an agreement for a lease and the expression “grantor” shall be construed accordingly.

(4) Where anything has been done in contravention of subsection (1) of this section, the Minister concerned, instead of exercising the powers conferred by subsection (2) of this section, may, if he thinks fit, direct that, during such period and subject to such conditions as may be specified in the direction, that thing shall be deemed to have been done with his consent.

(5) In the Public Utilities Street Works Act, 1950—

(a) subsection (8) of section four (which makes special provision in relation to the exercise of powers conferred by section twelve of the Requisitioned Land and War Works Act, 1948) shall have effect in relation to any rights exercisable under a wayleave order as it has effect in relation to any such power as is therein mentioned ; and

(b) paragraph (iii) of the proviso to subsection (2) of section twenty-two (which relates to work involving a lateral diversion of an oil pipe-line to which section twelve

of the said Act of 1948 applies) shall have effect in relation to an oil pipe-line or works laid, installed or constructed under a wayleave order as it has effect in relation to an oil pipe-line or works to which the said section twelve applies.

(6) Subsection (6) of the said section twelve (which restricts the erection of buildings or structures over or near certain pipe-lines or works accessory thereto) shall cease to apply to any land as from the time when subsection (1) of this section takes effect as respects that land in accordance with the next following section.

17.—(1) The rights conferred by a wayleave order shall not be exercisable against a purchaser for money or money's worth of a legal estate in any of the land to which the order applies unless, before the completion of the purchase, either—

Registration
of wayleave
orders and
restrictions
under s. 16.

(a) the order ; or

(b) the draft order referred to in the notice served in pursuance of paragraph 2 of the Second Schedule to this Act of the proposal to make the order,

has been registered in the prescribed manner in the register of local land charges of the council of the county borough, metropolitan borough or county district in which the land which is the subject of the purchase is situated ; and such a draft order as aforesaid may be so registered at any time after such a notice as aforesaid referring to it has been served :

Provided that the registration of a draft order shall not be effective for the purposes of this subsection in relation to any land to which the draft order did not apply.

(2) Except in the case of land to which a wayleave order applies, subsection (1) of the last foregoing section shall not take effect—

(a) as respects any land until notice of the restrictions imposed on that land by that subsection is registered in the prescribed manner in the register of local land charges of the council of the county borough, metropolitan borough or county district in which that land is situated ;

(b) in relation to any person who is an owner, lessee or occupier of that land at the time when the application for registration is made unless either—

(i) notice of the application or of the registration has been served on him ; or

(ii) the said restrictions arise from a wayleave order of which a copy was served on him under paragraph 7 of the Second Schedule to this Act.

(3) The power conferred by subsection (6) of section fifteen of the Land Charges Act, 1925, to make rules for giving effect

to the provisions of that section shall be exercisable for giving effect to the foregoing provisions of this section ; and in the said foregoing provisions the expression "prescribed" means prescribed by rules made in the exercise of that power.

(4) Any rules made under the said subsection (6) for the purposes of this section shall include provision—

- (a) for cancelling the registration under this section of a draft wayleave order in a case where it is decided not to make any order ;
- (b) for varying the registration of a draft wayleave order in a case where the order as made differs from that draft ;
- (c) for varying or cancelling any registration under this section in a case where—
 - (i) the wayleave order to which it relates is varied or revoked ; or
 - (ii) any restriction imposed by subsection (1) of the last foregoing section is modified or ceases to have effect.

(5) The foregoing provisions of this section shall not apply to Scotland, but as respects land in Scotland—

- (a) the Minister by whom a wayleave order is made shall as soon as may be record in the appropriate register of sines the wayleave order and any order varying or revoking that order ; and the rights conferred by any such order shall not be exercisable against any person acquiring any interest in any land to which the order applies unless the order has been so recorded before the completion of the acquisition ;
- (b) except in the case of land to which a wayleave order applies, the Minister with whose consent restrictions imposed on any land by subsection (1) of the last foregoing section may be disregarded shall record as aforesaid notice of those restrictions and of any modification or cesser thereof, and the said subsection (1) shall not take effect as respects that land until the said notice has been so recorded and shall not take effect in relation to any person who is an owner, lessee or occupier of that land at the time when the notice is so recorded unless either—
 - (i) such a notice has also been served on him ; or
 - (ii) the restrictions arise from a wayleave order of which a copy has been served on him under paragraph 7 of the Second Schedule to this Act.

(6) The foregoing provisions of this section shall not apply to Northern Ireland, but as respects land in Northern Ireland—

- (a) a wayleave order and restrictions imposed by subsection (1) of the last foregoing section shall be included amongst the matters which are required to be registered in the Statutory Charges Register ; and accordingly the

following paragraph shall be added after paragraph (m) of subsection (1) of section two of the Statutory Charges Register Act (Northern Ireland), 1951, that is to say—

“(n) a wayleave order made under section fourteen of the Land Powers (Defence) Act, 1958, and restrictions imposed by subsection (1) of section sixteen of that Act”;

- (b) except in the case of land to which a wayleave order applies, subsection (1) of the last foregoing section shall not take effect as respects any land until the restrictions imposed on that land by that subsection have been registered as aforesaid and shall not take effect in relation to any person who is an owner, lessee or occupier of that land at the time when the application for that registration is made unless either—

(i) there has been served on him notice either of the application or of the registration or of the giving of a priority notice in connection therewith under section four of the said Act of 1951; or

(ii) the said restrictions arise from a wayleave order of which a copy was served on him under paragraph 7 of the Second Schedule to this Act.

18.—(1) If by virtue of a wayleave order the value of any interest in land which comprises, or is held with, land to which the order applies is depreciated, being an interest subsisting at the time when the order was made, there shall be payable in respect of that interest by the Minister by whom the order was made compensation of an amount equal to the amount of the depreciation.

Compensation
in respect of
wayleave
orders and
restrictions
under s. 16.

(2) If, in the case of any land other than land which comprises, or is held with, land to which a wayleave order applies, the value of any interest in that land is depreciated in consequence of restrictions imposed by subsection (1) of section sixteen of this Act, being an interest subsisting at the time when that subsection takes effect as respects that land, there shall be payable in respect of that interest by the Minister with whose consent those restrictions may be disregarded compensation of an amount equal to the amount of the depreciation:

Provided that compensation under this subsection shall not be payable in respect of any land if compensation in respect of that land has been paid under section thirteen of the Requisitioned Land and War Works Act, 1948, and it is shown that the whole or part of that compensation is attributable to the provisions of subsection (6) of section twelve of that Act.

(3) Any person who, in consequence of the exercise of the rights conferred by a wayleave order, suffers loss by reason of damage to, or is disturbed in the enjoyment of, any land or chattels shall be entitled to compensation in respect of that

damage or disturbance from the Minister by whom the order was made.

(4) The Treasury may by regulations require, as a condition of the payment of compensation under this section, that, except in such circumstances as may be prescribed by the regulations, a claim shall be made in the form and manner so prescribed, and within such period as may be determined by or under the regulations.

(5) Any dispute as to a right to compensation under this section, or as to the amount of any such compensation, shall be determined by the Lands Tribunal.

Provisions relating to Postmaster-General

Acquisition
of land by
Postmaster-
General.

19.—(1) Where the Postmaster-General is satisfied with respect to any land—

(a) that the land is needed for the purposes of an installation required for telegraphic or telephonic communications ; and

(b) that the installation in question is or will be used wholly or mainly for defence purposes, or forms or will form part of a system essential for the defence of the realm,

then, subject to the provisions of Part I of the Second Schedule to this Act, the Postmaster-General may by order provide that Part II of that Schedule shall have effect for the purpose of the acquisition by him of that land.

(2) In this section “telegraphic or telephonic communications” includes communications by wireless telegraphy within the meaning of the Wireless Telegraphy Act, 1949.

Deep
telegraphic
lines.

20.—(1) Part IV of the Requisitioned Land and War Works Act, 1945 (which relates to telegraphic lines constructed by the Postmaster-General in the exercise of emergency powers) shall have effect in relation to any deep line constructed by the Postmaster-General after the twenty-fourth day of February, nineteen hundred and forty-six (being the end of the war period for the purposes of the said Part IV) in the exercise of powers conferred by the Defence (General) Regulations, 1939, as it has effect in relation to deep lines constructed by the Postmaster-General in the exercise of such powers before that day:

Provided that, for the purposes of the application of the said Part IV to a deep line by virtue of this section, the provisions of sections twenty-three and twenty-five of that Act shall apply with the omission—

(a) in the said section twenty-three, of the words “as from the end of the war period or such earlier date as may be fixed in relation thereto by the Postmaster-General”; and

(b) in subsection (2) of the said section twenty-five, of the words "after the end of the war period".

(2) In this section, the expression "deep line" has the meaning assigned by subsection (5) of the said section twenty-five.

Miscellaneous and general

21.—(1) Where by virtue of any of the provisions of this Act any duty is to be performed, or any power exercised, by a Minister, any person duly authorised in writing by that Minister may, at any reasonable time, enter upon any land, other than land covered by buildings, for the purpose of surveying that land in connection with, or with proposals for, the performance or exercise of that duty or power, and the provisions of the Fourth Schedule to this Act shall have effect in relation to the powers conferred by this subsection. Power to enter and survey land.

(2) Nothing in this section shall be construed as derogating from any right of entry under any other enactment, including any enactment contained in this Act.

22.—(1) The General Claims Tribunal constituted under the Compensation (Defence) Act, 1939, shall cease to exist, and accordingly subsections (3) and (4) of section eight of that Act are hereby repealed; and any question which, but for the foregoing provisions of this subsection, would fall to be determined by the said Tribunal shall be referred to and determined by the Lands Tribunal. Abolition and transfer of jurisdiction of General Claims Tribunal.

(2) This section shall come into force on such day as Her Majesty may by Order in Council appoint, and any proceedings pending before the General Claims Tribunal immediately before the day so appointed shall be continued before the Lands Tribunal, who may give any necessary directions as to the manner in which any such proceedings are to be so continued.

23.—(1) Any document required or authorised to be served on any person under this Act or, by virtue of this Act, under any other enactment may be served either by delivering it to that person, or by leaving it at his proper address, or by post, so, however, that the document shall not be duly served by post unless it is sent by registered letter. Provisions as to service.

(2) Any such document required or authorised to be served upon an incorporated company or body shall be duly served if it is served upon the secretary or clerk of the company or body.

(3) For the purposes of this section and of the application thereto of section twenty-six of the Interpretation Act, 1889, the proper address of any person upon whom any such document as aforesaid is to be served shall, in the case of the secretary or clerk of any incorporated company or body, be that of the

registered or principal office of the company or body, and in any other case be the last-known address of the person to be served:

Provided that, where the person to be served has furnished an address for service, being an address in the United Kingdom, his proper address for the purposes aforesaid shall be the address furnished.

(4) Where any such document as aforesaid is to be served by a Minister upon the owner, lessee or occupier of any land and that Minister is satisfied in relation to that land that reasonable inquiry has been made and that it is not practicable to ascertain whether or not there is, or what is the name or address of, any person who is the owner, lessee or occupier of that land, the document shall be deemed to have been duly served on any such person on whom it has for that reason not been served in accordance with the foregoing provisions of this section if it is addressed to all or such as may be appropriate of the following, that is to say, "the owners", "any lessee" and "any occupier" of the land (describing it), and is delivered to some responsible person on the land or, where there is no such person on the land to whom it may be delivered, if the document or a copy thereof so addressed is affixed to some conspicuous object on the land.

**Regulations
and orders.**

24.—(1) Any power conferred by this Act to make regulations shall be exercisable by statutory instrument and any such instrument shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(2) Any power to make orders conferred by any provision of this Act shall include power to vary or revoke any previous order made under that provision.

**Interpretation
—general and
in relation to
Scotland and
Northern
Ireland.**

25.—(1) In this Act, except in so far as the context otherwise requires, the following expressions have the following meanings respectively, that is to say:—

"defence purposes" includes any purpose of any of Her Majesty's naval, military or air forces, the service of any visiting force within the meaning of Part I of the Visiting Forces Act, 1952, and any purpose of the Minister of Supply connected with the service of any of the forces aforesaid;

"enactment" includes an enactment of the Parliament of Northern Ireland;

"land" includes land covered by water;

"manœuvres commission" has the meaning assigned by subsection (1) of section three of this Act;

"manœuvres Order" means an Order in Council authorising the execution of manœuvres made under section one of the Military Manœuvres Act, 1897;

“ Minister ” (except where the reference is to a particular Minister) means any Minister of the Crown or the Admiralty ;

“ occupier ” in relation to any land which is not occupied means the person for the time being entitled to possession of that land ;

“ oil installations ” means any works for the storage or transmission of oil (including oil pipe-lines and works accessory to oil pipe-lines) and any works for giving access to, or otherwise required in connection with, any such works ;

“ oil pipe-line ” means any main or pipe for the transmission of oil, or for the transmission of water or any other substance in connection with the storage or transmission of oil, or any part of such a main or pipe ;

“ owner ” in relation to any land—

(a) in the case of land other than land in Scotland, means a person, other than a mortgagee not in possession, who is for the time being entitled to dispose of the fee simple of the land, whether in possession or in reversion, and includes also a person holding or entitled to the rents and profits of the land under a lease or agreement the unexpired term of which exceeds three years ;

(b) in the case of land in Scotland, includes any person who, under the Lands Clauses Acts, would be enabled to sell and convey the land to the promoters of an undertaking and a tenant of the land under a lease the unexpired term of which exceeds three years ;

“ wayleave order ” has the meaning assigned by subsection (1) of section fourteen of this Act.

(2) In the application of this Act to Scotland—

(a) the expression “ chattels ” means corporeal moveables ;

(b) the expression “ easement ” means a servitude or similar right ;

(c) for any reference to the Lands Tribunal there shall be substituted a reference to the Lands Tribunal for Scotland, so, however, that until sections one to three of the Lands Tribunal Act, 1949, come into force as regards Scotland, this Act shall have effect in relation to Scotland as if for any reference to the Lands Tribunal there were substituted a reference to an official arbiter appointed under the Acquisition of Land (Assessment of Compensation) Act, 1919, and sections three, five and six of the said Act of 1919 shall apply, subject to

any necessary modifications, in relation to the determination of any dispute under this Act by an arbiter so appointed.

(3) In the application of this Act to Northern Ireland—

- (a) for any reference to the Lands Tribunal there shall be substituted a reference to an official arbitrator appointed under section one of the Acquisition of Land (Assessment of Compensation) Act, 1919; and any such arbitrator shall be selected in accordance with rules made by the reference committee under the said section one; and rules so made may make provision with respect to the reference and determination of any dispute under this Act falling to be determined by such an arbitrator and may apply any of the provisions of sections three to six of the said Act of 1919 with such modifications as may be necessary;
- (b) references to enactments of the Parliament of the United Kingdom shall be construed as references to those enactments as they apply in Northern Ireland;
- (c) any reference to an enactment of the Parliament of Northern Ireland, or to an enactment which that Parliament has power to amend, shall be construed as a reference to that enactment as amended by any Act of that Parliament, whether passed before or after this Act, and to any enactment of that Parliament passed after this Act and re-enacting the said enactment with or without modifications.

(4) References in this Act to the maintenance of an oil pipeline or of works accessory thereto shall be construed as including references to the replacing thereof, and the provisions of this Act shall apply to anything laid, installed or constructed by way of replacement as they previously applied to the thing replaced.

(5) Except in so far as the context otherwise requires, any reference in this Act to an enactment shall be construed as a reference to that enactment as amended or extended by or under any other enactment, including this Act.

Expenses.

26.—(1) There shall be defrayed out of moneys provided by Parliament—

- (a) any expenditure attributable to the provisions of this Act incurred by any Minister of Her Majesty's Government in the United Kingdom or by the Admiralty; and
- (b) any increase so attributable in the sums payable out of moneys so provided under Part I of the Local Government Act, 1948, or the Local Government (Financial Provisions) (Scotland) Act, 1954, as amended by the Valuation and Rating (Scotland) Act, 1956.

(2) Any amount recovered under this Act by any such Minister as aforesaid or by the Admiralty shall be paid into the Exchequer.

27.—(1) This Act may be cited as the Land Powers (Defence) Act, 1958. Short title
and extent.

(2) Sections two to six and twelve of this Act, except subsection (5) of the said section two, shall not extend to Northern Ireland.

SCHEDULES

Section 2.

FIRST SCHEDULE

MINOR AMENDMENTS TO MILITARY MANŒUVRES ACTS, 1897 AND 1911

The Military Manœuvres Act, 1897
(60 and 61 Vict., c. 43)

1. In sections one and two, subsection (1) of section six, and section seven, for the words "military manœuvres" wherever they occur there shall be substituted the words "defence manœuvres".
2. In paragraph (a) of section two, the word "military" in the first place where it occurs shall be omitted.
3. In section two and in subsection (2) of section three, for the words "officer in command of the authorised forces" there shall be substituted the words "officer directing the manœuvres".
4. In subsection (1) of section three—
 - (a) any reference to a road or to a footpath shall be construed as a reference to a highway, and the expression "highway" in its application to Scotland shall be deemed to include any public right of way ;
 - (b) for the words "military officers in command of the forces" in both places where they occur there shall be substituted the words "persons belonging to the authorised forces" ;
 - (c) for the words "commissioned officer in command of the authorised forces or of part thereof" there shall be substituted the words "person authorised in that behalf by the Secretary of State" ;
 - (d) for the words "a time", in both places where they occur, there shall be substituted the words "any part of the specified period" ;
 - (e) for the words "county, or main, or parish, road" there shall be substituted the words "highway which is a trunk road or a special road within the meaning of the Special Roads Act, 1949, or which is repairable by the inhabitants at large or, in Scotland, maintained and managed by a county or town council" ;
 - (f) for the words "sitting in petty sessions in the petty sessional division or divisions" there shall be substituted the words "sitting in petty sessions in the petty sessions area as defined by the Magistrates' Courts Act, 1952, or, in Scotland, sitting in justice of the peace court for the area" ;
 - (g) for the words "seven days notice" there shall be substituted the words "not less than seven days notice".
5. In subsection (2) of section three, for the word "give" there shall be substituted the words "provide for the giving of".
6. In subsection (4) of section six, the words from "and for this purpose" onwards shall be omitted.
7. In subsection (1) of section seven, after the word "vehicle" there shall be inserted the words "or other property".

8. In section eight, in paragraph (1) the words from "The expression" onwards shall be omitted and for paragraph (2) there shall be substituted the following paragraph—

1ST SCH.
—cont.

"(2) Any question falling to be determined by arbitration shall be determined by a single arbiter appointed, in default of agreement, by the sheriff on the application of any party to the question".

The Military Manœuvres Act, 1911

(1 and 2 Geo. 5, c. 44)

9. In section one—

- (a) in subsection (1) for the words from "the consent" to "Verderers" there shall be substituted the words "the consent of the Verderers of the New Forest";
- (b) in subsection (2) for the words "military manœuvres" there shall be substituted the words "defence manœuvres".

10. In section three—

- (a) the expression "general or field officer" shall be deemed to include any officer of corresponding naval or air force rank;
- (b) after the word "day" there shall be inserted the words "of the specified period";
- (c) for the words "the use of" there shall be substituted the words "any right of way over";
- (d) any reference to a road or to a footpath shall be construed as mentioned in sub-paragraph (a) of paragraph 4 of this Schedule.

SECOND SCHEDULE

Sections 6, 10,
11, 13, 14, 17, 19.

PROVISIONS WITH RESPECT TO CERTAIN ORDERS

PART I

Procedure for making certain orders

1. The provisions of this Part of this Schedule shall have effect for the purpose of the making by any Minister of an order under section six, ten, eleven, thirteen, fourteen or nineteen of this Act.

2.—(1) Before making the order the Minister shall prepare a draft thereof, describing by reference to a map the land to which the draft order applies, and serve on every owner, lessee or occupier of any of that land (except tenants for a month or any period less than a month) notice that he proposes to make the order; and any such notice—

- (a) except where it is accompanied by a copy of the draft order, shall state the effect thereof and name a place where a copy may be inspected during reasonable hours, being a place reasonably near to and accessible from the land in question;
- (b) except where it is accompanied by a copy of the said map, shall name a place where a copy of that map may be inspected during reasonable hours, being such a place as aforesaid;

2ND SCH.
—cont.

- (c) shall specify the time (not being less than twenty-one days from the service of the notice) within which, and the manner in which, objections to the order may be made.

(2) Where a notice is required to be served under this paragraph on the owner of any land which is ecclesiastical property, a like notice shall be served on the Church Commissioners.

In this sub-paragraph the expression "ecclesiastical property" means land (not being land in Scotland, Northern Ireland, Wales or Monmouthshire) belonging to any ecclesiastical benefice, or being or forming part of a church subject to the jurisdiction of a bishop of any diocese or the site of such a church, or being or forming part of a burial ground subject to such jurisdiction.

3. If no objection is duly made by any such owner, lessee or occupier as aforesaid or if all objections so made are withdrawn, the Minister may make the order either in the form of the draft or, subject to paragraph 6 of this Schedule, with modifications.

4.—(1) If any objection duly made as aforesaid is not withdrawn, the Minister shall afford to the person by whom that objection was made an opportunity to appear before, and be heard by, a person appointed by the Lord Chancellor to hold an inquiry into the proposal to make the order:

Provided that the Minister shall not be required to afford any person an opportunity to appear and be heard as aforesaid otherwise than in private.

(2) The person holding an inquiry under the foregoing sub-paragraph shall report thereon to the Minister who, after considering the report and the objection, may make the order either in the form of the draft or, subject to paragraph 6 of this Schedule, with modifications.

(3) The Lord Chancellor shall by statutory instrument make rules of procedure for the purposes of inquiries held under this paragraph, including rules—

- (a) as to the information with respect to the Minister's reasons for proposing to make the order, the findings and recommendations of the person holding the inquiry, the Minister's decision on those findings and recommendations, and the Minister's reasons for any departure from those recommendations, to be furnished by the Minister to persons afforded such an opportunity as aforesaid as being owners, lessees or occupiers of any land;

- (b) as to the furnishing by the Minister to the person holding the inquiry of explanations of the Minister's reasons for proposing to make the order and of evidence in support thereof.

(4) The person appointed to hold an inquiry under this paragraph shall be paid by the Minister such remuneration and allowances as the Lord Chancellor may, with the approval of the Treasury, determine.

5. The Minister may require any person who has made an objection to state in writing the grounds thereof, and any such objection which the Minister is satisfied relates exclusively to matters of compensation may be disregarded for the purposes of the two last foregoing paragraphs.

6. The order shall not be made with any modification from the draft unless either—

2ND SCH.
—cont.

- (a) every person who is an owner, lessee or occupier of any land to which the order applies which is affected by that modification, other than a tenant for a month or any period less than a month, has been served with notice of the proposal to make the modification and either has consented thereto or has not before the expiration of fourteen days from the service of the notice notified the Minister in writing that he objects thereto ; or
- (b) the modification arises from representations made at an inquiry into the proposal to make the order held under paragraph 4 of this Schedule or from the findings or recommendations of the person holding that inquiry, and every person such as is mentioned in the foregoing sub-paragraph was served with such a notice of that proposal as is mentioned in paragraph 2 of this Schedule and afforded an opportunity to appear and be heard at the inquiry.

7. If the order is made, the Minister shall serve on every person who is an owner, lessee or occupier of any land to which the order applies, and on any other person upon whom such a notice of the proposal to make the order as is mentioned in paragraph 2 of this Schedule was served, a copy of the order and either a copy of the map referred to in the order or a notice naming a place where that map may be inspected during reasonable hours, being a place reasonably near to and accessible from the land to which the order applies.

8. If, where the order is made, any person aggrieved thereby, being a person required to be served with a copy of the order under the last foregoing paragraph, desires to question the validity thereof or of any provision contained therein on the ground that the making of the order or the inclusion of that provision was not authorised by this Act or on the ground that any requirement of this Act or of any rules made under sub-paragraph (3) of paragraph 4 of this Schedule has not been complied with in relation to the order, he may, not later than the expiration of six weeks from the date on which he is served as aforesaid, make an application to the High Court, and on any such application the court—

- (a) may by interim order suspend the operation of the order or any provision contained therein, either generally or in so far as it affects any property of the applicant or a part of any such property, until the final determination of the proceedings ;
- (b) if satisfied that the making of the order or the inclusion of any provision therein was not authorised by this Act or that the interests of the applicant have been substantially prejudiced by failure to comply with any requirement of this Act or of any such rules as aforesaid in relation to the order, may quash the order or any provision contained therein, either generally or in so far as it affects any property of the applicant or a part of any such property.

9. Subject to the provisions of the last foregoing paragraph, the order shall not, either before or after it has been made, be questioned

2ND SCH.
—cont.

in any legal proceedings whatsoever, and shall become operative as soon as it is made.

10. In the application of this Part of this Schedule in relation to land in Scotland—

- (a) in sub-paragraphs (1) and (4) of paragraph 4 thereof, for references to the Lord Chancellor there shall be substituted references to the Secretary of State ;
- (b) in sub-paragraph (3) of the said paragraph 4, for the words “ Lord Chancellor ” there shall be substituted the words “ Secretary of State after consultation with the Lord President of the Court of Session ” ; and
- (c) in paragraph 8 thereof, for references to the High Court there shall be substituted references to the Court of Session.

11. In the application of this Part of this Schedule in relation to land in Northern Ireland—

- (a) in sub-paragraphs (1) and (4) of paragraph 4 thereof, for references to the Lord Chancellor there shall be substituted references to the Lord Chief Justice of Northern Ireland ;
- (b) in sub-paragraph (3) of the said paragraph 4, after the words “ Lord Chancellor ” there shall be inserted the words “ after consultation with the Lord Chief Justice of Northern Ireland ” ; and
- (c) in paragraph 8 thereof, references to the High Court shall be construed as references to the High Court in Northern Ireland.

PART II

Acquisition of land, etc., under certain orders

12. The provisions of this Part of this Schedule shall apply where an order is made under section thirteen or nineteen of this Act for the purpose of the acquisition of any land, or of any easement over or right restrictive of the user of any land, by the Minister of Power or, as the case may be, by the Postmaster-General.

13. The following enactments, that is to say—

- (a) the Defence Act, 1842, except sections five, six, eight, twenty-three, thirty-seven, thirty-nine and forty-one ;
- (b) the Defence Act, 1854 ;
- (c) the Defence Act, 1859 ;
- (d) section seven of the Lands Clauses Consolidation Acts Amendment Act, 1860, with the omission from the proviso thereto of the words from “ authorize ” to “ 1842, or ” ;
- (e) section forty-six of the Defence Act, 1860, and the provisions thereby applied ;
- (f) section seven of the Militia (Lands and Buildings) Act, 1873 ;
- (g) the Defence Acts Amendment Act, 1873 ;
- (h) Part VII of the Requisitioned Land and War Works Act, 1945,

shall have effect for the purpose of the acquisition, holding, management, use and disposal in any manner of the land, easement or

right to which the order applies as if references in those enactments in whatever terms to the principal officers of Her Majesty's ordnance or to the Secretary of State for the War Department or to the ordnance department included references to the Minister of Power, or, as the case may be, the Postmaster-General, and to his department.

2ND SCH.
—cont.

14. Notice to treat for the compulsory acquisition under the enactments aforesaid of any land, easement or right to which the order applies may be served notwithstanding that the provisions of section sixteen of the Defence Act, 1842, with respect to the surveying and marking out of land have not been complied with, and references in the enactments aforesaid to land surveyed and marked out under that section shall be construed as including references to land described in a notice to treat for the acquisition thereof.

15. At any time after serving any such notice to treat as aforesaid for the acquisition of any land, easement or right which falls to be served on any owner, lessee or occupier of any land affected and after serving on every owner, lessee or occupier of that land not less than fourteen days' notice, the Minister of Power or, as the case may be, the Postmaster-General may enter on and take possession of, or exercise any of the rights to be acquired with respect to, the land (or such part thereof as is specified in the last-mentioned notice) without previous consent or compliance with any relevant requirements of any of the enactments aforesaid, but subject to the payment of the like compensation as would have been payable if those requirements had been complied with, and, where possession is taken of the land, subject to the payment of interest on that compensation from the date of entry at the rate for the time being in force for the purposes of the following enactment, that is to say—

- (a) in the case of land in England or Wales, subsection (2) of section fifty-seven of the Town and Country Planning Act, 1947 ;
- (b) in the case of land in Scotland, subsection (2) of section fifty-four of the Town and Country Planning (Scotland) Act, 1947 ;
- (c) in the case of land in Northern Ireland, subsection (1) of section fourteen of the Administrative and Financial Provisions Act (Northern Ireland), 1956.

16. Where any such notice to treat or of intended entry as aforesaid is required to be served on an owner of land which is ecclesiastical property as defined in paragraph 2 of this Schedule, a like notice shall be served on the Church Commissioners ; and any compensation in respect of the acquisition which, apart from this paragraph, would have been payable to the owner of the land shall be paid to the Church Commissioners to be applied for the purposes for which the proceeds of a sale by agreement of the land would be applicable under any enactment or Measure authorising such a sale or disposing of the proceeds of such a sale.

Section 8.

THIRD SCHEDULE

STOPPING UP AND DIVERSION OF HIGHWAYS IN NORTHERN IRELAND

1. The powers exercisable by the Ministry of Commerce for Northern Ireland under section seventeen of the Roads Act (Northern Ireland), 1948 (which empowers that Ministry to authorise the stopping up or abandonment of a road, and the provision or improvement of another road or roads in substitution therefor, upon being notified of such a resolution as is referred to in subsection (1) of that section) shall also be exercisable without any such notification or resolution where—

- (a) land is, or is to be, used by a Secretary of State, the Admiralty or the Minister of Supply for the purposes of an installation provided or to be provided for defence purposes, or is used by a manufacturer of aircraft as an airfield wholly or mainly in connection with the manufacture of aircraft for defence purposes; and
- (b) the Ministry of Commerce for Northern Ireland is satisfied that, for the land to be so used efficiently without danger to the public, it is necessary that a highway should be stopped up or abandoned.

2. Where, in the circumstances specified in sub-paragraphs (a) and (b) of the foregoing paragraph, it appears to the Ministry of Commerce for Northern Ireland that it is not necessary that the road should be stopped up for more than a limited period, the powers conferred by the said section seventeen shall be exercisable so as to provide for the stopping up of the road during such period as may be prescribed by or under an order made under that section and for the restoration of the road at the end of that period.

3. Any order made in accordance with the last foregoing paragraph which provides for the provision of another road in substitution for a road stopped up by the order may also contain such provisions as appear to the Ministry of Commerce for Northern Ireland to be expedient for the stopping up, at the expiration of the period prescribed by or under the order, of that other road and for the original road to be reconstructed at the expense of such of the Ministers referred to in sub-paragraph (a) of paragraph 1 of this Schedule as may be specified in the order and thereafter maintained by any person who would for the time being have been liable for its maintenance if it had never been stopped up.

4. The powers conferred on the Ministry of Commerce for Northern Ireland by virtue of this Schedule shall be exercisable for the purpose of authorising in the circumstances specified in sub-paragraphs (a) and (b) of paragraph 1 of this Schedule the stopping up or abandonment of a road which is temporarily stopped up or diverted under any enactment of the Parliament of the United Kingdom or which is temporarily stopped up under an order made by virtue of paragraph 2 of this Schedule.

5. Where, in the circumstances specified in the said sub-paragraphs (a) and (b), it is agreed between the Ministry of Commerce for Northern Ireland and such of the Ministers referred to in the said sub-paragraph (a) as is concerned that another road ought to be provided or improved in substitution for the road to be stopped up or abandoned, the powers conferred upon the said Ministry by

section thirty-four of the said Act of 1948 shall be exercisable for the purpose of acquiring any land required in connection with the provision or improvement of that other road, and any expenditure incurred by any person in acquiring such land and carrying out such works as may be agreed as aforesaid to be necessary for the provision or improvement of that other road shall be defrayed by the Minister aforesaid.

3RD SCH.
—cont.

FOURTH SCHEDULE

Sections 9, 10,
15, 16, 21.

SUPPLEMENTARY PROVISIONS AS TO EXERCISE OF CERTAIN POWERS

1. A person entering on any land in the exercise of powers in relation to which this paragraph applies shall, if so required, produce written evidence of his authority before so entering, and shall not demand admission as of right unless not less than seven days' notice in writing of the intended entry has been given to the occupier.

2. Any person who wilfully obstructs a person acting in the exercise of any powers in relation to which this paragraph applies shall be liable on summary conviction to a fine not exceeding twenty pounds.

3. Any person who, in consequence of the exercise of any power in relation to which this paragraph applies, suffers loss by reason of damage to, or is disturbed in the enjoyment of, any land or chattels shall be entitled to compensation in respect of that damage or disturbance from the Minister or local authority on whose behalf the power is exercised; and any dispute as to a right to compensation under this paragraph, or as to the amount of any such compensation, shall be determined by the Lands Tribunal.

4. Any power to survey land included in powers in relation to which this paragraph applies shall be construed as including power to search and bore for the purpose of ascertaining the nature of the subsoil:

Provided that, in relation to the exercise of the power to search and bore, paragraph 1 of this Schedule shall have effect as if for the reference to seven days' notice there were substituted a reference to twenty-eight days' notice.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Defence Act, 1842	5 & 6 Vict. c. 94.
Railways Clauses Consolidation Act, 1845 ...	7 & 8 Vict. c. 20.
Railways Clauses Consolidation (Scotland) Act, 1845	7 & 8 Vict. c. 33.
Defence Act, 1854	17 & 18 Vict. c. 67.
Defence Act, 1859	22 Vict. c. 12.
Lands Clauses Consolidation Acts Amendment Act, 1860	23 & 24 Vict. c. 106.
Defence Act, 1860	23 & 24 Vict. c. 112.
Militia (Lands and Buildings) Act, 1873 ...	36 & 37 Vict. c. 68.
Defence Acts Amendment Act, 1873 ...	36 & 37 Vict. c. 72.
Electric Lighting Act, 1882	45 & 46 Vict. c. 56.
Interpretation Act, 1889	52 & 53 Vict. c. 63.
Military Manœuvres Act, 1897	60 & 61 Vict. c. 43.
Military Lands Act, 1900	63 & 64 Vict. c. 56.
Military Manœuvres Act, 1911	1 & 2 Geo. 5. c. 44.

Table of Statutes referred to in this Act—cont.

Short Title	Session and Chapter
Ancient Monuments Consolidation and Amendment Act, 1913	3 & 4 Geo. 5. c. 32.
Acquisition of Land (Assessment of Compensation) Act, 1919	9 & 10 Geo. 5. c. 57.
Land Charges Act, 1925	15 & 16 Geo. 5. c. 22.
Compensation (Defence) Act, 1939	2 & 3 Geo. 6. c. 75.
Requisitioned Land and War Works Act, 1945	8 & 9 Geo. 6. c. 43.
Supplies and Services (Transitional Powers) Act, 1945	9 & 10 Geo. 6. c. 10.
Town and Country Planning Act, 1947	10 & 11 Geo. 6. c. 51.
Town and Country Planning (Scotland) Act, 1947	10 & 11 Geo. 6. c. 53.
Requisitioned Land and War Works Act, 1948	11 & 12 Geo. 6. c. 17.
Local Government Act, 1948	11 & 12 Geo. 6. c. 26.
Special Roads Act, 1949	12, 13 & 14 Geo. 6. c. 32.
Lands Tribunal Act, 1949	12, 13 & 14 Geo. 6. c. 42.
Wireless Telegraphy Act, 1949	12, 13 & 14 Geo. 6. c. 54.
Civil Aviation Act, 1949	12, 13 & 14 Geo. 6. c. 67.
Public Utilities Street Works Act, 1950	14 Geo. 6. c. 39.
Supplies and Services (Defence Purposes) Act, 1951	14 & 15 Geo. 6. c. 25.
Mineral Workings Act, 1951	14 & 15 Geo. 6. c. 60.
Magistrates' Courts Act, 1952	15 & 16 Geo. 6 & 1 Eliz. 2. c. 55.
Visiting Forces Act, 1952	15 & 16 Geo. 6 & 1 Eliz. 2. c. 67.
Historic Buildings and Ancient Monuments Act, 1953	1 & 2 Eliz. 2. c. 49.
Local Government (Financial Provisions) (Scotland) Act, 1954	2 & 3 Eliz. 2. c. 13.
Valuation and Rating (Scotland) Act, 1956	4 & 5 Eliz. 2. c. 60.

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